

nection a small monthly fee (say Rs 250), and allow them to download all the music they want from P2P, without any legal issues. Sound strange? Here's how they propose this "Collective License" idea would work...

If millions of people across the globe (P2P users) paid a small fee for the freedom to download absolutely any music available on P2P networks, legally, then that translates into billions of dollars worth of *profit* for the recording industry! In fact, if the amount is really as little as \$5 (Rs 225) per month, ISPs themselves will be only too happy to pay the amount for their users, considering that they'd be able to market it as a broadband connection with free, unlimited music downloading! With people paying anywhere from Rs 1,000 to Rs 3,000 for always-on 256 Kbps connections around India, who would mind a few hundred Rupees more for the peace of mind that such a scheme would offer?

How would the artists and recording companies make money? All you need to do is visit www.bigchampagne.com, for the answer! Big Champagne is a media research company that monitors retail outlets, online music stores, streaming video and music, and yes, even P2P sharing. For P2P, they monitor what is being downloaded, legally or illegally, to find what music is the most popular across the world.

Such data could be used to distribute the money that could be collected if we used the EFF's strategy of legalising P2P. Artists and labels whose songs are most downloaded would get a bigger piece of the Collective License pie. This would also ensure that good music, and not marketing campaigns, music videos and promotion gimmicks, would be rewarded. Indie artists rejoice!

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What About CDs?

What about them? Those who still want to buy them will do so. The idea is not to stop producing CDs or albums or even DVDs. The idea is to legalise the file-sharing that the recording labels are crying foul from. This is why a Collective License would reap pure profits. Audiophiles, for whom 192 Kbps MP3s are akin to blasphemy, will still be able to go out and buy DVD quality sound for themselves. You will still get entire albums in stores, both online and offline, and basically everything about the industry will remain unchanged. The only difference is that the recording industry starts making profits off the P2P phenomenon they're currently cribbing about, and all of us can download and listen in peace!

Will It Work?

Of course, this can also apply to movies, games, software and basically anything—all it needs is the support of the companies that are currently fighting P2P. Easier said than done; which is evident from the fact that although the idea of a Collective License has existed for quite a few years now, no headway seems to have been made.

Besides, this idea isn't new, and for those who doubt that such an idea might even work; consider the radio station business. What was once considered a business of piracy, just as P2P is now, the radio industry is today a working example of a similar Collective License. Instead of paying for the license of every song, radio stations pay a high license fee to associations such as ASCAP (American Society of Composers, Authors and Publishers) or BMI (Broadcast Music Incorporated), for the freedom to air anything licensed by these associations—which is almost every song ever created. These agencies then pay the artists royalties based on what's popular, for the rights to allow radio stations to broadcast their music. In the end everyone's happy, everyone makes money, and we get to listen to the latest music on air. Since this also involves online radio, it's only a matter of juxtaposition to imagine this working for P2P.

Inevitable?

So is this the way that P2P will go? Unless someone comes up with a better solution, it certainly seems a likely possibility. Let's face it: with huge grey areas caused by differing laws across the world, P2P is here to stay. Is the uploader the criminal? Is the downloader breaking the law? Should we sue the software creator? Try and shut down every Torrent hosting site? Get better DRM solutions? Sue a billion people across the world? With so many questions, and so few sane answers, a solution is desperately needed, and none of them make more sense right now than a Collective License. How long will the RIAA continue to sue individuals before it realises that it is losing potentially billions of dollars of profits by not adopting such a solution? Will egos ever deflate, allowing for saner solutions? What else can we do but wait and watch?

For now, you just have to live with your conscience when downloading the latest Metallica concert, and hope that the RIAA doesn't come a-knocking, dragging you away to court while you yell, "Power to the people, long live P2P!" ■

robert_smith@thinkdigit.com

Keeping It Legal

With all this talk of piracy, the RIAA, lawsuits, jail terms, etc., it's no wonder that there are quite a few people who are paranoid enough to not even install P2P software, and even those who do not download anything at all! However, you need not worry, because there's enough free content out there that is licensed under some Creative Commons license that you're free to download, by law.



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